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California Gov Gavin Newsom bans students' favorite cafeteria snacks over cancer fears

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California school children will soon be left without their favorite lunchtime snacks as the state moves closer to banning artificial ingredients in hundreds of foods.

The California School Food Safety Act, was signed into law last week by Gov Gavin Newson. It bans Red 40, Yellow 5, Yellow 6, Blue 1, Blue 2, and Green 3 in meals, drinks, and snacks served in most K-12 school cafeterias across the state.

Officials insist the new law will not ban any foods, though it will require food manufacturers to strip artificial dyes from their recipes and replace them with natural alternatives, like carrot or beet juice, something many companies already do in European markets.

Companies have until December 31, 2027, to reformulate their products and remove the ingredients that have been linked to developmental problems or see their foods blocked from being sold to schools.

The latest legislation builds on one Gov Newsom signed into law last year, outlawing brominated vegetable oil, potassium bromate, propylparaben, and red dye 3.

It has been dubbed the Skittles Ban before lawmakers amended it in a way that excluded the dye in the popular candy.

According to that law, food manufacturers have until January 2027 to strip the ingredients from their products or face fines of up to $10,000.

Under the newest law, manufacturers of products like Flamin' Hot Cheetos, Doritos, Fruit Loops, Gatorade, Kool-Aid, and M&Ms could see their products pulled from cafeterias in the roughly 12,000 public and charter schools across the state if changes aren't made by the deadline.

Gov Newsom said: 'Today, we are refusing to accept the status quo, and making it possible for everyone, including school kids, to access nutritious, delicious food without harmful, and often addictive additives.

'By giving every child a healthy start, we can set them on the path to a future with less risk of obesity and chronic illness.'

California has been leading the way when it comes to efforts to crack down on food makers that use certain synthetic food dyes linked to developmental and behavioral problems in children.

Red 40, Yellow 5, Yellow 6, Blue 1, Blue 2, and Green 3, which the FDA has deemed safe to include in food, have been associated with ADHD symptoms such as hyperactivity.

A 2015 meta-analysis reviewed trials in which food additives were removed from children's diets to see how their ADHD symptoms changed, both in blinded (they didn't know their diets had changed) and unblinded (they knew that dyes were no longer part of their diets) situations.

Across 14 unblinded studies with over 2,000 participants, more than 47 percent showed improvement in ADHD

symptoms.

Six additional studies utilized either placebo-controlled diets or a crossover design, in which children alternated between diets with and without food additives. In these trials, the improvement rate was 33 percent.

Some of these dyes have also been shown in animal studies to increase the risk of developing kidney and bladder tumors, but evidence is slim. The additives have also been linked to worsening asthma.

State Assemblymember Jesse Gabriel, who wrote the bill, said: ‘California is once again leading the nation when it comes to protecting our kids from dangerous chemicals that can harm their bodies and interfere with their ability to learn.

‘This bipartisan law will empower schools to better protect the health and wellbeing of students and sends a strong message to manufacturers to stop using these harmful additives.’

But the food industry has railed against California's strict legislation arguing state governments should not take on the job of regulating that belongs to the FDA.

The industry has also argued that by Gov Newsom stepping into the federal government’s role, IT will undermine public trust in the FDA and its ability to protect the public from poisons and bad actors.

The International Food Additives Council, a trade organization, said: ‘This legislation is not only misguided, but it also increases costs and complexity, ultimately affecting the population that needs nutrition the most while disrupting national food regulations and causing consumer confusion.

‘This approach fosters unnecessary fear and mistrust in the federal system.’

Meanwhile, John Hewitt, a senior vice president at Consumer Brands Association, said: ‘The approach taken by California politicians ignores our science and risk based process and is not the precedent we should be setting when it comes to feeding our families.’

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